

4. JACKSON v. PG&E CORP., ET AL., 24CV2285**Application for Good Faith Settlement**

On June 2, 2025, defendant Mountain F. Enterprises, Inc. (“MFE”) filed a notice that it reached a settlement with plaintiff Nancy Jackson and filed an application for a determination of the good faith of the settlement pursuant to Code of Civil Procedure section 877.6. In support of its application, MFE submitted declarations from Kelly Haas (the first declaration from Ms. Haas was filed in the same document as the application on June 2, 2025; a separate declaration from Ms. Haas was filed on February 18, 2026), Erik Bunge (filed June 25, 2025), and John Sayre (filed August 12, 2025).

On June 26, 2025, defendants Pacific Gas and Electric Company and PG&E Corporation (“PG&E defendants”) filed a timely motion contesting the good faith of the settlement. On June 27, 2025, defendant/cross-complainant Clear Path Utility Solutions, LLC filed a separate, timely motion contesting the good faith of the settlement. On August 22, 2025, the court continued the hearing on both motions to allow the contesting defendants to engage in discovery regarding the *Tech-Bilt*² factors. Recently, the contesting defendants withdrew both of their motions (Clear Path filed a notice of withdrawal of its motion on April 13, 2026, and the PG&E defendants filed a notice of withdrawal of their motion on April 14, 2026).

1. Legal Principles

The procedure for a good faith settlement determination is set forth in Code of Civil Procedure section 877.6, subdivision (a)(2). In an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt, “a settling party may give notice of settlement to all parties and to the court, together with an application for determination of good faith settlement and a proposed order.” (Code Civ. Proc., § 877.6, subd. (a)(2).) “The application shall indicate the settling parties, and

² *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488.

the basis, terms, and amount of settlement.” (*Ibid.*) After such an application is made, “a nonsettling party may file a notice of motion to contest the good faith of the settlement.” (*Ibid.*)

A good faith determination “ ‘bar[s] any other join tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial comparative indemnity, based on comparative negligence or comparative fault.’ ([Code Civ. Proc.,] § 877.6, subd. (c).)” (*Cahill v. San Diego Gas & Electric Co.* (2011) 194 Cal.App.4th 939, 959.)

2. Discussion

In its application for good faith settlement, MFE states: “Plaintiff’s Complaint only pleads two Incidents against Settling Defendant involving damage to two milled logs and a Christmas tree. Said settlement in the amount of \$12,000.00 settles Plaintiff’s respective claims for the damage to the two milled logs and the removal of the Christmas tree. Thus, the amount of the settlement is fair and reasonable consideration for the compromise, release, and waiver of Plaintiff’s claims against the Settling Defendant as Settling Defendant’s alleged involvement only concerns two milled logs and one Christmas tree out of the total 120 trees and 30 milled logs allegedly damaged.” (App. at 8:18–24.)

Having read and considered the application and supporting documents, and given MFE’s minimal involvement in plaintiffs’ total alleged injury, the court finds that MFE’s settlement in the amount of \$12,000.00 is reasonable and made in good faith. The application is granted.

TENTATIVE RULING # 4: DEFENDANT MOUNTAIN F. ENTERPRISE’S APPLICATION FOR GOOD FAITH SETTLEMENT IS GRANTED. NO HEARING ON THIS MATTER WILL BE HELD (LEWIS v. SUPERIOR COURT (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED

ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED.

NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.